

as it had the earlier announcement that his job was being eliminated by the Department of Defense. At a news conference on December 8, 1969, President Richard Nixon was queried about Fitzgerald's impending separation from Government service.³ The President responded by promising to look into the matter.⁴ Shortly after the news conference the petitioner asked White House Chief of Staff H. R. Haldeman to arrange for Fitzgerald's assignment to another job within the administration.⁵ It also appears that the President suggested to Budget Director Robert Mayo that Fitzgerald might be offered a position in the Bureau of the Budget.⁶

Fitzgerald's proposed reassignment encountered resistance within the administration.⁷ In an internal memorandum of January 20, 1970, White House aide Alexander Butterfield reported to Haldeman that "Fitzgerald is no doubt a top-notch cost expert, but he must be given very low

"firing of this dedicated public servant" as a "punitive action." *Id.*, at 115-116.

³ A briefing memorandum on the Fitzgerald matter had been prepared by White House staff in anticipation of a possible inquiry at the forthcoming press conference. Authored by aide Patrick Buchanan, it advanced the view that the Air Force was "firing . . . a good public servant." App. 269a (memorandum of Patrick Buchanan to Richard Nixon, Dec. 5, 1969). The memorandum suggested that the President order Fitzgerald's retention by the Defense Department.

⁴ *Id.*, at 228a.

⁵ See *id.*, at 109a-112a (deposition of H. R. Haldeman); *id.*, at 137a-141a (deposition of petitioner Richard Nixon). Haldeman's deposed testimony was based on his handwritten notes of December 12, 1969. *Id.*, at 275a.

⁶ See *id.*, at 126a (deposition of Robert Mayo); *id.*, at 141a (deposition of Richard Nixon).

⁷ Both Mayo and his deputy, James Schlesinger, appear to have resisted at least partly due to a suspicion that Fitzgerald lacked institutional loyalty to executive policies and that he spoke too freely in communications with friends on Capitol Hill. Both also stated that high-level positions were presently unavailable within the Bureau of the Budget. See *id.*, at 126a (deposition of Robert Mayo); *id.*, at 146a-147a (deposition of James Schlesinger).